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Plaintiff, *Pro per pro se*

Dated: April 25, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No.: 2:2025CV00404

PLAINTIFF'S MOTION TO INTRODUCE SUPPLEMENTAL EVIDENCE

SUPPORTING CLAIMS OF CONSTITUTIONAL VIOLATIONS AND

ELECTION INTERFERENCE

1 **NOTICE OF MOTION AND MOTION**

2 **TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:**

3 PLEASE TAKE NOTICE that Plaintiff Mathew Tyler ("Plaintiff"), appearing pro per pro
4 se and proceeding in forma pauperis, hereby moves this Court for an order permitting the
5 introduction of supplemental evidence in support of Plaintiff's claims. This motion is
6 based on this Notice of Motion and Motion, the attached Memorandum of Points and
7 Authorities, the Declaration of Mathew Tyler, all pleadings and papers on file in this
8 action, and upon such other matters as may be presented to the Court at the time of
9 hearing.

10 **MEMORANDUM OF POINTS AND AUTHORITIES**

11 **I. INTRODUCTION**

12 Plaintiff Mathew Tyler, a qualified individual with disabilities as defined under the
13 Americans with Disabilities Act ("ADA") and Section 504 of the Rehabilitation Act, and
14 a crime victim as defined by 18 U.S.C. § 3771, 34 U.S.C. § 20141(e)(2), and California
15 Constitution Article 1 § 28(e), respectfully moves this Court to permit the introduction of
16 critical supplemental evidence that conclusively establishes systematic violations of
17 constitutional rights and federal law in connection with the 2024 election.

18 The supplemental evidence consists of: (1) a CD containing video footage originally
19 broadcast by NBC News documenting the certification process of the 2024 presidential
20 election, which Plaintiff alleges was constitutionally defective due to the systematic

1 exclusion of qualified disabled candidates; and (2) documentation confirming that
2 Plaintiff's Congressional criminal complaint was properly transmitted to Senator Bernie
3 Sanders' offices, establishing Defendants' knowledge of these violations prior to
4 certification.

5 This evidence is directly relevant to Plaintiff's claims of treason, election interference,
6 disability discrimination, and systematic civil rights violations as detailed in the
7 Complaint and subsequent filings. The Court's consideration of this evidence is necessary
8 to ensure the full and fair adjudication of Plaintiff's claims and to protect fundamental
9 constitutional principles of democratic governance and equal protection.

10 II. **FACTUAL BACKGROUND**

11 Plaintiff has alleged in his Complaint and subsequent filings that Defendants engaged in a
12 coordinated pattern of discrimination against qualified individuals with disabilities
13 seeking ballot access in the 2024 presidential election. Specifically, Plaintiff has
14 presented evidence that all 50 states systematically denied his requests for reasonable
15 accommodations under the ADA and Section 504 of the Rehabilitation Act, effectively
16 preventing his participation in the electoral process solely on the basis of disability.

17 On November 6, 2024, Plaintiff submitted a formal Criminal Complaint to Congress
18 detailing these violations and requesting immediate intervention to prevent the
19 certification of an election tainted by systematic discrimination and civil rights violations.

20 This Criminal Complaint explicitly alleged that the election results were "fruit of the

1 poisonous tree" due to the pervasive discrimination that unlawfully excluded qualified
2 candidates with disabilities.

3 On November 8, 2024, Plaintiff transmitted copies of this Criminal Complaint to Senator
4 Bernie Sanders' offices in Washington D.C. and Burlington, Vermont, providing clear
5 notice of these violations prior to the certification of election results. Despite this notice,
6 Defendants proceeded with certification without addressing or remedying the systematic
7 discrimination documented in Plaintiff's complaint.

8 The supplemental evidence that Plaintiff now seeks to introduce will establish: (1) the
9 procedural defects in the certification process; (2) Defendants' knowledge of
10 constitutional violations prior to certification; and (3) the causal link between the
11 systematic discrimination against candidates with disabilities and the flawed electoral
12 outcome.

13 **III. LEGAL ARGUMENT**

14 **A. Standard for Admission of Supplemental Evidence**

15 Federal Rule of Evidence 401 defines relevant evidence as that which "has any tendency
16 to make a fact more or less probable than it would be without the evidence" and "the fact
17 is of consequence in determining the action." Federal Rule of Evidence 402 provides that
18 relevant evidence is admissible unless otherwise provided by the Constitution, federal
19 statute, or other rules.

1 Courts have consistently recognized the importance of allowing pro se litigants,
2 particularly those proceeding in forma pauperis, the opportunity to present all relevant
3 evidence in support of their claims. As the Supreme Court held in *Haines v. Kerner*, 404
4 U.S. 519, 520-21 (1972), pleadings and submissions by pro se litigants should be held "to
5 less stringent standards than formal pleadings drafted by lawyers." This principle has
6 been consistently reaffirmed in subsequent cases, including *Erickson v. Pardus*, 551 U.S.
7 89, 94 (2007).

8 Furthermore, as recently affirmed by this Court in *Dunham v. Mohyuddin*, 2:23-CV-
9 2757-DMC-P (E.D. Cal. Jan. 29, 2025), "The Court must also construe the alleged facts
10 in the light most favorable to the plaintiff... All ambiguities or doubts must also be
11 resolved in the plaintiff's favor." This standard requires that the Court view Plaintiff's
12 evidence in the light most favorable to Plaintiff when determining its admissibility and
13 probative value.

14 B. The Supplemental Evidence Is Directly Relevant to Plaintiff's Claims

15 The supplemental evidence that Plaintiff seeks to introduce is directly relevant to multiple
16 claims asserted in this action, including:

- 17 1. Violations of the Americans with Disabilities Act and Section 504 of the
18 Rehabilitation Act

19 The video evidence documenting the certification process demonstrates the downstream
20 effects of the systematic discrimination against qualified candidates with disabilities. This

1 evidence directly supports Plaintiff's claims under Title II of the ADA, 42 U.S.C. §§
2 12131-12134, and Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, by establishing
3 the causal link between the denial of reasonable accommodations and the flawed electoral
4 outcome.

5 The Supreme Court in *Tennessee v. Lane*, 541 U.S. 509 (2004) specifically recognized
6 that Title II constitutes a valid exercise of Congress's enforcement power under the
7 Fourteenth Amendment when fundamental rights, such as access to the courts and
8 electoral participation, are at stake. The supplemental evidence will demonstrate the
9 systematic denial of such fundamental rights.

10 2. Constitutional Claims Under the First, Fifth, and Fourteenth Amendments

11 The evidence supports Plaintiff's claims that Defendants violated his constitutional rights,
12 including:

13 a. First Amendment right to freedom of speech and association by preventing
14 participation in the electoral process; b. Fifth and Fourteenth Amendment rights to due
15 process and equal protection by arbitrarily excluding him from the electoral process
16 based on disability; c. Fourteenth Amendment right to equal protection of the laws.

17 In *Anderson v. Celebrezze*, 460 U.S. 780, 787-88 (1983), the Supreme Court established
18 that state-imposed restrictions on ballot access implicate "the right of individuals to
19 associate for the advancement of political beliefs, and the right of qualified voters,
20 regardless of their political persuasion, to cast their votes effectively." The supplemental

1 evidence demonstrates that these fundamental rights were systematically violated through
2 discriminatory ballot access requirements.

3 3. Conspiracy to Interfere with Civil Rights

4 The documentation of transmittal of Plaintiff's Criminal Complaint to Senator Sanders'
5 offices establishes Defendants' knowledge of the alleged civil rights violations prior to
6 certification. This evidence supports Plaintiff's claims under 18 U.S.C. §§ 241-242 and 42
7 U.S.C. §§ 1983, 1985 by demonstrating the willful nature of the deprivation of
8 constitutional rights.

9 As the Supreme Court held in *Screws v. United States*, 325 U.S. 91, 103 (1945), officials
10 acting under color of law who willfully deprive individuals of constitutional rights are
11 subject to liability. The supplemental evidence will establish the willful nature of these
12 violations despite explicit notice.

13 4. Election Interference and Treason Claims

14 The video evidence of the certification process, coupled with the documentation of prior
15 notice of constitutional violations, supports Plaintiff's claims regarding election
16 interference and potential treason. The evidence establishes that Defendants proceeded
17 with certification despite knowledge of pervasive discrimination that undermined the
18 integrity of the electoral process.

19 The Supreme Court's recent decision in *Trump v. Anderson*, No. 23-719, 601 U.S. (2024)
20 established that states lack the constitutional authority to disqualify candidates for federal

1 office and that excluding a candidate from the ballot constitutes de facto disqualification.
2 The supplemental evidence will demonstrate that Plaintiff was effectively disqualified
3 through discriminatory ballot access requirements in violation of this principle.

4 C. The "Fruit of the Poisonous Tree" Doctrine Applies to Election Results

5 The evidence that Plaintiff seeks to introduce is essential to establishing that the 2024
6 election results constitute "fruit of the poisonous tree" due to systematic discrimination in
7 the electoral process. This doctrine, established in *Wong Sun v. United States*, 371 U.S.
8 471 (1963), requires the exclusion of evidence obtained through unconstitutional means.
9 Federal courts have specifically applied this principle to election results tainted by
10 constitutional violations:

- 11 1. In *Harvell v. Blytheville School District No. 5*, 71 F.3d 1382, 1389-90 (8th Cir.
12 1995), the court applied this doctrine to invalidate election practices that
13 discriminated against protected classes;
- 14 2. In *Bell v. Southwell*, 376 F.2d 659, 664 (5th Cir. 1967), the court voided election
15 results due to discrimination in the electoral process;
- 16 3. In *Griffin v. Burns*, 570 F.2d 1065, 1078-79 (1st Cir. 1978), the court established
17 federal court authority to void state elections that violate constitutional rights.

18 The supplemental evidence will demonstrate that the 2024 election was systematically
19 tainted by discrimination against qualified candidates with disabilities, rendering the
20 results constitutionally defective under this established doctrine.

1 D. Mandatory Reporting Requirements for State Property Crimes

2 The video evidence and documentation of notice are particularly relevant in light of
3 California Government Code § 14613.7 and Title 13, California Code of Regulations,
4 Division 2, Chapter 12, Section 1875, which establish mandatory reporting requirements
5 for crimes that occur on state property or involve state resources.

6 As explained in *People v. Nguyen*, 155 Cal.App.4th 1154, 1161-62 (2007), these
7 procedures are "designed to protect both the public interest and the rights of the accused."

8 The supplemental evidence will demonstrate Defendants' failure to comply with these
9 mandatory reporting requirements despite clear evidence that the alleged violations
10 involved state resources and occurred on state property.

11 **IV. CONCLUSION**

12 For the foregoing reasons, Plaintiff respectfully requests that this Court grant this motion
13 and permit the introduction of the supplemental evidence described herein. This evidence
14 is directly relevant to Plaintiff's claims, satisfies all requirements for admissibility, and is
15 essential to ensuring the full and fair adjudication of this case in accordance with
16 constitutional principles of due process and equal protection.

17 The Court's consideration of this evidence is particularly appropriate given Plaintiff's
18 status as a pro se litigant proceeding in forma pauperis and as a crime victim entitled to
19 specific rights under federal and state law. As this Court recognized in *Dunham v.*

1 Mohyuddin, the Court must construe the facts in the light most favorable to Plaintiff and
2 resolve all ambiguities in Plaintiff's favor.

3 Respectfully submitted,

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Mathew Tyler

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Plaintiff, *Pro per pro se*

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1 **DECLARATION OF MATHEW TYLER**

2 I, MATHEW TYLER, declare as follows:

3 1. I am the Plaintiff in the above-captioned matter, appearing pro per pro se and
4 proceeding in forma pauperis as approved by this Court.

5 2. I have personal knowledge of the facts set forth in this declaration and, if called as
6 a witness, could and would testify competently thereto.

7 3. I am a qualified individual with disabilities under the Americans with Disabilities
8 Act ("ADA") and Section 504 of the Rehabilitation Act. I am affected by Central
9 core disease, which impacts my ability to perform manual tasks, walk, stand, lift,
10 bend, breathe, and maintain stamina. I am also affected by ADHD, which impacts
11 my learning, reading, concentration, thinking, communication, and working
12 abilities.

13 4. I am a crime victim as defined by 18 U.S.C. § 3771, 34 U.S.C. § 20141(e)(2), and
14 California Constitution Article 1 § 28(e).

15 5. On November 6, 2024, I submitted a Criminal Complaint to Congress detailing
16 systematic violations of constitutional rights and federal law in connection with
17 the 2024 election, specifically regarding disability discrimination in ballot access
18 requirements.

19 6. On November 8, 2024, at approximately 11:59 AM, I successfully transmitted via
20 fax a copy of this Criminal Complaint to Senator Bernie Sanders' Burlington,

1 Vermont office at fax number (802) 860-6370, which is the official fax number
2 listed on Senator Sanders' official website at
3 <https://www.sanders.senate.gov/contact/>.

4 7. On November 8, 2024, at approximately 12:00 PM, I successfully transmitted via
5 fax a copy of this Criminal Complaint to Senator Bernie Sanders' Washington
6 D.C. office at fax number (202) 228-0776, which is the official fax number listed
7 on Senator Sanders' official website at <https://www.sanders.senate.gov/contact/>.

8 8. I have obtained documentation confirming the successful transmission of these
9 faxes, which I seek to introduce as evidence in this case.

10 9. I have also obtained a video recording of NBC News coverage documenting the
11 certification process of the 2024 presidential election, which I downloaded from
12 <https://www.youtube.com/watch?v=vhMJfcTNA20>.

13 10. This video evidence, together with the documentation of my Criminal Complaint
14 transmittal, conclusively establishes that Defendants proceeded with certification
15 despite having knowledge of pervasive constitutional violations in the electoral
16 process.

17 11. The introduction of this supplemental evidence is essential to the full and fair
18 adjudication of my claims and to protect fundamental constitutional principles of
19 democratic governance and equal protection.

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1 **[PROPOSED] ORDER**

2 Having considered Plaintiff Mathew Tyler's Motion to Introduce Supplemental Evidence
3 and good cause appearing therefor,

4 IT IS HEREBY ORDERED that:

5 1. Plaintiff's Motion to Introduce Supplemental Evidence is GRANTED.

6 2. Plaintiff is permitted to introduce the following supplemental evidence: a. CD
7 containing video footage originally broadcast by NBC News documenting the
8 certification process of the 2024 presidential election; and b. Documentation
9 confirming the transmission of Plaintiff's Congressional criminal complaint to
10 Senator Bernie Sanders' offices on November 8, 2024.

11 3. This evidence shall be marked and entered into the record as Plaintiff's Exhibits
12 [numbers to be assigned].

13 4. The Clerk of the Court shall make appropriate arrangements for the viewing of the
14 video evidence at the time of trial or hearing.

15 IT IS SO ORDERED.

16 Dated: _____, 2025

17 UNITED STATES DISTRICT JUDGE

18

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